

M/S Hariom Industries Limited v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 October 2024 · 2024:AHC:160632-DB · Writ - C No. 33098 of 2024 · **Notice issued; coercion stayed on three-month deposit**

HEADNOTE

Admission order. The petitioner challenged a direction dated 12 August 2024 to adjust six months of electricity bills, relying on clause 5.6(e) of the U.P. Electricity Supply Code, 2005, which it said permits adjustment only of the three months before the dispute. The Division Bench held that the plea requires consideration, called for affidavits, and listed the writ in the week commencing 11 November 2024. Until then, coercive measures are stayed if the petitioner, within two weeks, pays the check-meter reading difference for three previous months (roughly 177004 units).

FACTUAL SUMMARY

M/S Hariom Industries Limited impugned an order dated 12 August 2024 directing adjustment of electricity bills for the previous six months. It said a check meter was installed on 25 August 2022, that the billing dispute arose on that date, and that clause 5.6(e) of the U.P. Electricity Supply Code, 2005 allows adjustment only of the bills of the three months preceding the month in which the dispute arose. The writ was heard at the admission stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(e)

admission and interim protection on a three-month adjustment plea

HOLDING

The plea that clause 5.6(e) permits adjustment only of the three months preceding the month the dispute arose, and that the order dated 12 August 2024 wrongly directed six months' adjustment, was held to require consideration and was not decided. Counter affidavit within three weeks, rejoinder within one week thereafter, and listing in the week commencing 11 November 2024. Subject to the petitioner paying, within two weeks, the difference in reading as per the check meter for three previous months (roughly 177004 units), the respondents shall take no coercive measures until the next date of listing. ¶ 2-7

PRINCIPLE TAGS

procedural-listing-no-construction

The Bench recorded the petitioner's reliance on clause 5.6(e) but made no construction of the three-month limit. It only admitted the writ and, pending affidavits, stayed coercive action on deposit of the three-month check-meter difference. ¶ 2-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.6(E) CONFINES ADJUSTMENT TO THE THREE MONTHS PRECEDING THE MONTH THE DISPUTE AROSE (PLEADED AS 25 AUGUST 2022, WHEN THE CHECK METER WAS INSTALLED), AND WHETHER THE ORDER DATED 12 AUGUST 2024 DIRECTING SIX MONTHS' ADJUSTMENT IS THEREFORE BAD.

The court stated only that the matter requires consideration. ¶ 2-3